

		The Case Management Conference and the Status Conference re corporate representation of plaintiff are continued to January 28, 2027 at 1:30 p.m. <i>Defendants to give notice.</i>
107	Keating vs. General Motors, LLC, 25-01469536	Defendant General Motors LLC (“GM” or “Defendant”) will and hereby does move for judgment on the pleadings as to all five causes of action asserted in the Complaint filed by Thomas Keating (“Plaintiff”). GM requests all five causes of action be dismissed without leave to amend, and that judgment on those causes of action be entered in favor of Defendant GM. Initially, all papers opposing a motion “shall be filed with the court and a copy served on each party at least nine court days” before the hearing. (Code Civ. Proc. § 1005(b).) The failure to oppose a demurrer may be construed as having abandoned the claims. (<i>See Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20 [“Plaintiffs did not oppose the County’s demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue”].) In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) Here, no opposition to the Motion for Judgment on the Pleadings has been filed; and therefore, the Court deems the motion unopposed and construes the failure to oppose the Motion as an abandonment of Plaintiff’s claims. Therefore, the unopposed Motion for Judgment on the Pleadings is GRANTED in its entirety with 20 days leave to amend.

		<i>Defendant to give notice.</i>
108	Doe vs. 1, 25-01495743	Defendant Nancy Williams (“Defendant”) demurs to the First Amended Complaint on the grounds that (1) the causes of action are time barred pursuant to section 340.1 and Plaintiff fails to allege sufficient facts to invoke the delayed discovery rule and (2) the causes of action are uncertain and vague. Plaintiff John Wa Doe (“Plaintiff”) opposes the motion. I. THE COMPLAINT IS NOT BARRED BY THE STATUTE OF LIMITATIONS Defendant’s first argument is that Plaintiff’s complaint is barred by the statute of limitations set forth in Code of Civil Procedure section 340.1. Section 340.1 governs childhood sexual assault cases. When the childhood sexual assault at issue “occurred on and after January 1, 2024,” then there “is no time limit for the commencement of” the actions listed in section 340.1 for recovery of damages suffered as a result of childhood sexual assault.” (Code Civ. Proc., § 340.1, subds. (a) and (p).) Code of Civil Procedure section 340.11 states: “(a)(1) Notwithstanding Section 340.1, in an action for recovery of damages suffered as a result of childhood sexual assault that occurred before January 1, 2024, the time for commencement of the action shall be within 22 years of the date the plaintiff attains the age of majority or within five years of the date the plaintiff discovers or reasonably should have discovered that psychological injury or illness occurring after the age of majority was caused by the sexual assault, whichever period expires later, for any of the following actions: “(A) An action against any person for committing an act of childhood sexual assault. “(B) An action for liability against any person or entity who owed a duty of care to the plaintiff, if a wrongful or negligent act by that person or entity was a legal cause of the childhood sexual assault that resulted in the injury to the plaintiff.